

		19. Paragraph 9 of the proposed order and judgment should be revised to state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 20. The last sentence of paragraph 10 should be removed. 21. Paragraph 13 of the proposed order and judgment is inconsistent with the settlement agreement and inconsistent with entry of judgment. 22. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>November 5, 2026 at 2:00 p.m.</u> in department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	People of State of California v. Jivalagian, et al. 2026-01543442	<u>Defendants Caspar S. Jivalagian and Vache A. Thomassian's Motion to Seal</u> Defendants Caspar S. Jivalagian and Vache A. Thomassian move to seal (i) the complaint filed in this case on January 29, 2026, (ii) "all papers and records related to Plaintiff's ex parte Application for an Order Staying the Proceedings," (iii) "all papers and records related to Plaintiff's Motion for an Order Staying the Proceedings," (iv) "all papers and records related to this Motion" and (v) "all papers and records relating to Defendants' ex parte Application to advance the hearing of this motion." Notice of Motion (ROA 49) at 2:4-8. While defendants do not identify these documents by name or ROA number, review of court file reflects that defendants apparently

	seek to seal—in their entirety—at least 15 documents in the court file, including 3 court orders. For the following reasons, defendants’ motion is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i> A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” <i>Id.</i> A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d). An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> Defendants’ declarations and that of their counsel do not state facts sufficient to justify sealing these documents. As an initial matter, despite accepting service of the complaint on February 6, 2026 (ROA 10, 14), and filing a brief in the case on February 10, 2026 (ROA 27), defendants waited two months to file the motion to seal. Several of the documents defendants seek to seal were filed in January and February 2026, yet defendants did not move to seal them until April 9, 2026. ROA 49. More fundamentally, defendants have not demonstrated that there exists an overriding interest that overcomes the right of public access to these court records, that the overriding interest supports sealing the records, and that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. Defendants identify two purportedly overriding interests: defendants’ Fifth Amendment privilege against self-incrimination and “preserving the integrity of ongoing criminal investigations and prosecutions.” Brief at 5:3-5, 10-11. While under some circumstances an ongoing criminal investigation may warrant sealing a civil complaint (see, e.g., Ins. Code § 1871.7(e)(2); <i>State of Cal. ex rel. Sills v. Ghariv-Danesh</i> (2023) 88 Cal.App.5th 824, 838), defendants—neither of whom is presently a defendant in a pending criminal case—offer no persuasive explanation here how public access to these records infringes their Fifth Amendment
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		privilege against self-incrimination or undermines the integrity of ongoing criminal investigations and prosecutions. Nor have defendants shown that alleged harm to their professional reputations and client relationships warrant sealing these records. "While commercial harm or embarrassment of a party does not alone justify sealing the entire record of a case [citation], it is appropriate to seal certain records when those particular records contain highly sensitive and potentially embarrassing personal information about individuals." <i>People v. Jackson</i> (2005) 128 Cal.App.4th 1009, 1024. <i>Jackson</i> affirmed a trial court's order sealing certain records to protect the privacy of minors regarding alleged sexual misconduct. <i>Id.</i> at 1021-24. Defendants have not demonstrated that the records they seek to seal contain the type of highly sensitive and potentially embarrassing personal information courts have found supports sealing court records. Defendants also have not demonstrated that the proposed sealing is narrowly tailored. Defendants' proposed sealing of at least 15 entire court filings, including 3 court orders, is decidedly not narrowly tailored. Defendants' contention that only wholesale sealing of these records will suffice is not convincing, but defendants also have not in any event, as discussed above, demonstrated that sealing these court records is otherwise appropriate. Clerk to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed June 4, 2026 (ROA 81), and based thereon continues the June 18, 2026 status conference to <u>September 17, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
9	Turner v. Amada America, Inc. 2023-01328405	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$1,300,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$390,000.00 for attorneys' fees (not to exceed); \$26,500.00 for attorneys' costs (not to exceed); \$12,000.00 for settlement administration fees (not to exceed); and \$25,000.00 total PAGA penalties (\$18,750.00 to LWDA).